

The Tamil Nadu Electricity Regulatory Commission Fund Rules, 2007

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State of Tamilnadu- Act

The Tamil Nadu Electricity Regulatory Commission Fund Rules, 2007

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The Tamil Nadu Electricity Regulatory Commission Fund Rules, 2007

RULE THE-TAMIL-NADU-ELECTRICITY-REGULATORY-COMMISSION-FUND-RULES-2007 of 2007

Published on 23 February 2007

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The Tamil Nadu Electricity Regulatory Commission Fund Rules, 2007

Published vide Notification No. G.O. Ms. No. 8, Energy (AI) dated 23rd February, 2007

Published in Tamil Nadu Government Gazette, Part III, Section 1(a), Issue No. II, Page 48-51, dated March 21, 2007.

In exercise of the powers conferred by sub-section (1) and clause (g) of sub-section (2) of Section 180 read with sub-section (3) of Section 103 of the Electricity Act, 2003 (Central Act 36 of 2003), and in consultation with the Comptroller and Auditor-General of India, the Governor of Tamil Nadu hereby makes the following Rules:-

1.

Short title and commencement.

(a)

These Rules may be called the Tamil Nadu Electricity Regulatory Commission Fund Rules, 2007.

(b)

They shall come into force at once.

2.

Definitions.

(1)

In these Rules, unless the context otherwise requires:-

(a)

"Act" means the Electricity Act, 2003 (Central Act 36 of 2003);

(b)

"Commission" means the Tamil Nadu Electricity Regulatory "Commission, constituted under Section 82 of the Act;

(c)

"Financial Year" means a period of twelve calendar months commencing from the 1st April of a year and ending with the 31st March of the next year;

(d)

"Fund" means the Tamil Nadu Electricity Regulatory Commission Fund constituted under sub-section (1) of Section 103 of the Act;

(e)

"Government" means Government of Tamil Nadu;

(f)

"Officers" means the Officers authorized by the Commission to open and operate the bank account;

(2)

Words and expressions used in these Rules but not defined therein shall have the meanings respectively assigned to them in the Act.

3.

Name of the Fund.

- The Fund constituted under sub-section (1) of Section 103 of the Act shall be called the Tamil Nadu Electricity Regulatory Commission Fund.

4.

Opening of Bank Account.

(1)

The Commission shall after taking a decision of the full Commission open account in one or more of the nationalized banks.

(2)

The Commission shall authorize two of its officers to open and operate the Bank Account and the specimen signatures of those authorized officers shall be furnished to the bank for its information and records. The Bank Account shall be opened in the name of the Commission and in the name of the Fund.

5.

Withdrawal of funds from the Bank.

(1)

The amount in the Fund credited in the bank account shall not be withdrawn except on presentation of a cheque signed by the officers who have been authorized by the Commission to operate the Bank Account.

(2)

These officers shall be responsible for monitoring the proper transactions of receipts and payments on behalf of the Commission.

(3)

These officers shall be responsible to ensure that the amount of the cheques or demand drafts deposited in the banks have been credited in time in the account of the Commission and also reconcile the receipts and payments with the Bank.

(4)

All receipts under clauses (a) to (c) of sub-section (1) of Section 103 of the Act shall be initially deposited into the Commission's bank account. Such receipts shall thereafter be drawn and deposited into the Fund.

(5)

The grants allocated by the Government under the budgetary provisions shall be drawn and remitted into the Public Deposit Account by Chief Electrical Inspector to Government in detailed heads of Account as indicated in Appendix.

(6)

Drawal of funds for the Commission from the Public Deposit Account shall be regulated on the basis of the budgetary allocation with the concurrence of the Finance Department.

6.

Unspent budgetary provision to be remitted into Public Deposits Account.

- The unspent balance on hand and in the bank account at the end of the Financial Year of budgetary provision shall be remitted by the Commission into the Public Deposit Account within three months of the closing of the financial year and on finalization of annual accounts.

Account Code

Description

(1)

(2)

Revenue

1. Fee and Charges

1.1 Fee

1.2 Charges

1.3 Fines

1.4 Others (Specify)

Grants:

2.1 From Government

2.2 From Others

3. Other Income

3.1 Sale of Publications

4. Sale of Assets

5. Sale of Investments

6. Recoveries from pay bills

6.1 Principal amount of Loans and Advances;

6.2 Interest on Loans and Advances

7. Other Miscellaneous Income

8. Income from Investments and Deposits

9. Loans

9.1 From Government

9.2 From Others (Specify)

Expenditure:

10. Employee Cost

10.1 Salary and allowances to Chairman and Members

10.2 Salary and allowances to Secretary

10.3 Salary and Allowances to Others

10.4 Medical reimbursements

10.5 Leave Travel Concession

10.6 Earned Leave encashment

10.7 Pension Contribution

10.8 Uniform Expenses

10.9 Staff Welfare expenses

10.10 Terminal Benefits

11. Administrative and General Expenses

11.1 Rent, Rates and Taxes

11.2 Insurance

11.3 Telephone Charges, Postage, Telegram and Fax Expenses

- 11.4 Legal Charges
- 11.5 Audit Fees
- 11.6 Consultant's Honorarium
- 11.7 Consultancy Charges (Other than tariff determination)
- 11.8 Meeting Expenses
- 11.9 Seminar expenses
- 11.10 Conveyance and Travel Expenses
- 11.11 Fuel to vehicle
- 11.12 Hire charges for Vehicles,
- 11.13 Fees and subscriptions to FOIR and other organizations
- 11.14 Electricity Charges
- 11.15 Books and Periodicals
- 11.16 Printing and Stationery
- 11.17 Bank Charges
- 11.18 Watch and Ward expenses
- 11.19 Sweeping Charges
- 11.20 Petty Office maintenance expenses
- 11.21 Provision for doubtful debts and advances
- 11.22 Loss on sale of Assets
- 11.23 Bad Debts written off
- 11.24 Expenses related to prior period
- 11.25 Other Miscellaneous expenses
- 12. Repairs and Maintenance
 - 12.1 Vehicles
 - 12.2 Office equipments
 - 12.3 Furniture and Fixtures
 - 12.4 Building
 - 12.5 Others
- 13. Tariff Determination and Grant of License
 - 13.1 Expenses on publication of notice
 - 13.2 Expenses on public hearing
 - 13.3 Consultancy charges
- 14. Depreciation
 - 14.1 Depreciation on land and land rights
 - 14.2 Depreciation on Buildings
 - 14.3 Depreciation on Plant and Machinery
 - 14.4 Depreciation on Vehicles
 - 14.5 Depreciation on Furniture and fixtures
 - 14.6 Depreciation on Office equipments
 - 14.7 Depreciation on Library Books
- 15. Current Assets
 - 15.1 Loans and Advances to staff
 - 15.2 Deposit with Telephone Authorities
 - 15.3 Other Advances
 - 15.4 Cash Imprest with staff
- 16. Purchase of Assets/Capital Expenditure
 - 16.1 Purchase of land and land rights
 - 16.2 Construction of Buildings
 - 16.3 Purchase of Plant and Machinery
 - 16.4 Purchase of Vehicles
 - 16.5 Purchase of Furniture and fixtures

16.6 Purchase of Office equipments

16.7 Purchase of Library Books.

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